

HOUSE No. 3987

The Commonwealth of Massachusetts

PRESENTED BY:

Kip A. Diggs

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to ensuring access to dental care for MassHealth recipients.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kip A. Diggs</i>	<i>2nd Barnstable</i>	<i>1/16/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/22/2025</i>

HOUSE No. 3987

By Representative Diggs of Barnstable, a petition (accompanied by bill, House, No. 3987) of Kip A. Diggs relative to dental care for MassHealth recipients. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to ensuring access to dental care for MassHealth recipients.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 112 of the General Laws is hereby amended by inserting after
2 section 52G the following section:

3 Section 52H. (a) For the purposes of section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Board”, the board of registration of dentistry pursuant to section 43.

6 “Department”, the department of public health.

7 “Executive office”, the executive office of health and human services.

8 (b) No person shall be licensed by the board to practice dentistry pursuant to section 50
9 unless the person agrees to: (i) accept a minimum percentage of MassHealth patients as part of
10 their active patient base, the percentage of which shall be determined by the department based on

regional needs and the dental provider's capacity; and (ii) provide documentation annually to the department verifying compliance with the minimum patient requirement set forth in clause (i).

(c) The department, in consultation with the executive office, shall establish: (i) the minimum percentage of MassHealth patients required for compliance pursuant to subsection (b), which shall not be less than 5 per cent of a dental provider's total patient caseload; and (ii) a process for dentists to apply for hardship exemptions or adjustments based on dental practice size, geographic location or other factors as determined by the department.

(d) Any dentist who fails to meet the requirements of this section may face: (i) suspension of their license to practice dentistry by the board pursuant to section 52D until compliance is achieved; or (ii) administrative penalties as determined by the department.

(e) The executive office shall develop an online portal to: (i) allow MassHealth recipients to locate participating dental providers by region; and (ii) provide transparency on dentist participation rates and available services.

(f) To encourage dentist participation in the MassHealth program, the executive office shall: (i) subject to appropriation, offer student loan forgiveness for newly licensed dentists who meet or exceed the required percentage of MassHealth patients for a minimum of 3 years; and (ii) provide increased reimbursement rates for services rendered to MassHealth patients to ensure financial sustainability for participating dental providers.

(g) In cases of an emergency, as defined by the department, any licensed dentist in the commonwealth may treat a MassHealth recipient regardless of their participation status in the MassHealth program. Such cases of an emergencies shall include, but are not limited to, acute dental pain, infection or trauma that requires immediate intervention to prevent significant health

33 complications. Dentists providing care in cases of an emergency under this subsection shall be
34 reimbursed at the standard MassHealth rate plus 10 per cent for services rendered within 60 days.

35 (h) The executive office shall promulgate rules and regulations to implement this section.

36 (i) The executive office shall prepare an annual report that shall include: (i) the number of
37 dentists participating in the MassHealth program by region; (ii) the percentage of MassHealth
38 patients served relative to the state's dental care needs; and (iii) any recommendations for
39 addressing gaps in access to dental care for MassHealth recipients. The annual report shall be
40 submitted, not later than December 31 of each year, to the chairs of the joint committee on public
41 health and the clerks of the house of representatives and senate.

42 SECTION 2. This act shall take effect 180 days after passage.